

**Judgment Sheet**  
**IN THE LAHORE HIGH COURT, LAHORE**  
**JUDICIAL DEPARTMENT**

**Crl. Appeal No.22010/2022**  
*(Muhammad Aslam vs. The State & another)*

**Murder Reference No.79/2022**  
*(The State vs. Muhammad Aslam)*

**Crl. Appeal No.22009/2022**  
*(Bashir Ahmed vs. Muhammad Saeed, etc.)*

**JUDGMENT**

|                  |                                                       |
|------------------|-------------------------------------------------------|
| Date of hearing: | 15.05.2025                                            |
| Appellant by:    | Mr. Muhammad Shahid Azeem, Advocate.                  |
| State by:        | Rana Muhammad Imran Anjum, Deputy Prosecutor General. |
| Complainant by:  | Ch. Ghulam Mujataba, Advocate with the complainant.   |

**ALI ZIA BAJWA, J.:-** Through this single judgment, we intend to decide **Crl. Appeal No.22010/2022** titled '*Muhammad Aslam vs. The State & another*', **Murder Reference No.79/2022** titled '*The State vs. Muhammad Aslam*', and **Crl. Appeal No.22009/2022** titled '*Bashir Ahmed vs. Muhammad Saeed, etc.*', as these are arising out of the same judgment dated 16.03.2022 (hereinafter '*the impugned judgment*'), passed by the Additional Sessions Judge, Arifwala (hereinafter '*the trial court*').

2. Muhammad Aslam son of Ghulam Muhammad, caste Dhuddi, resident of Chak No.26/KB, Tehsil Arifwala, District

Pakpattan Sharif (hereinafter 'the appellant') along with Muhammad Sharif and Muhammad Saeed (both since acquitted) was implicated in case FIR No.475/2019, dated 11.10.2019, offenses under Sections 302, 427 & 34 PPC, registered with Police Station Qabula Sharif, District Pakpattan Sharif. He was tried by the trial court for the aforementioned offenses. The trial court seized with the matter, vide the impugned judgment, convicted and sentenced the appellant as under:-

- Under Section 302(b) PPC, sentenced to death with direction to pay Rs.2,00,000/- as compensation to the legal heirs of the deceased in terms of Section 544-A Cr.P.C.
- Benefit of Section 382-B Cr.P.C. was also extended in favour of the appellant.

3. The prosecution's version of the case, as portrayed in the FIR (Exh.PA/1), has been reproduced below: -

بیان ازان بشیر احمد ولد محمد فاضل قوم ڈھڑی سکھہ چک نمبر KB/26 بمبر 60 سال زیر دفعہ 154 ف میں چک نمبر KB/26 کارہائی ہوں زمیندارہ کرتہوں آج مورخہ 11.10.19 بوقت تقریباً 01:45 بجے دوپہر میں بذریعہ ٹریکٹریٹ گاڑی سے اپنے رقبہ واقع KB/26 میں مل چلا ہوا تھا جبکہ نذر احمد برادر م رقبہ کی وٹ پر ایک طرف کھڑا تھا اور محمد حسین برادر م۔ محمد وحید ولد منظور احمد اقوام ڈھڑی سکھہ رقبہ کی وٹ پر دوسری طرف قریب ہی کھڑے تھے کہ اچانک مسلمان محمد اسلم مسلح راکٹل محمد شریف مسلح بمبار 12 بوریہ پیران غلام، محمد سعید ولد محمد شریف مسلح راکٹل، اقوام ڈھڑی سکھہ KB/26 اٹا کھراس لگاتے ہوئے آگے آئے ہی محمد سعید نے راکٹل سے سید حافظ کو جو مجھے قتل کرنے کی غرض سے مارا جو ٹریکٹر کے دائیں طرف والی پچھلے ٹائر پہ لگا اور ٹائر پھٹ گیا میں نے ٹریکٹر روک کر جلدی سے دوسری طرف لپٹی جان بچاتے ہوئے دوسرے ٹائر کے پاس بیٹھ گیا جبکہ نذر احمد میری طرف آنے لگا تو محمد اسلم نے سید حافظ نذر احمد کو قتل کرنے کی نیت سے اپنی راکٹل کا مارا جو نذر احمد کے بائیں ہٹ کے اندر کی طرف لگا اور دوسری طرف کراس ہو کر لٹل گیا نذر احمد برادر م موقع پر معزوب ہو کر گر پڑا اس دوران محمد اسلم محمد شریف اور محمد سعید نے خوف و حراس پھیلاتے ہوئے فائدہ اٹھانے والی فائرنگ کرتے ہوئے اور جان سے مارنے کی دھمکیاں دیتے ہوئے موقع سے فرار ہو گئے و قودہ ہذا میرے ساتھ محمد حسین اور محمد وحید نے ہتھم خود دیکھا موقع پر پولیس کو اطلاع دی برادر م کو معزوبی حالت میں قبولہ ہسپتال کی طرف لارہے تھے کہ برادر م نذر احمد زخموں کی تاب نہ لاتے ہوئے جاں بحق ہو گیا و جب عیادہ عیادہ یہ ہے کہ جملہ الزام علیہاں ہمارے ملکیتی رقبہ پر ناجائز قبضہ کرنا چاہتے تھے اس رنج کی بنا پر جملہ الزام علیہاں نے ہم صلاح مشورہ ہو کر برادر م کو سید حافظ مار کر ناحق قتل کیا ہے مجھے قتل کی غرض سے فائر مارا جو ٹریکٹر کے ٹائر پر لگتے سے ٹائر پھٹ گیا اور 60000 روپے کا نقصان پہنچا علیہاں نے فائرنگ کر کے برادر م نذر احمد کو جان سے مار کر اٹھانے فائرنگ کر کے ٹریکٹر کا نقصان کر کے سراسر ظلم کیا ہے بیان کرتا ہوں کاروائی کی جائے العید بشیر احمد مستفیض دستخط اور دو نشان اگر تھانہ ترقی دستخط شوکت علی SI/HIU/INV تھانہ قبولہ شریف کاروائی پولیس افسر وقت من SI/INV معز حسن بلال C/1011 سلیم اکبر C/919 جاوید اختر C/93 ملازمان سوداری سرکاری گاڑی نمبری PKG/1008 جس کا ڈرائیور محمد عبداللہ C/516 ہے اطلاع و قودہ پا کر موقع پر بعد KB/26 پہنچا ہوں بشیر احمد ولد محمد فاضل مستفیض نے بیان بالا زبانی بول کر تحریر کروایا جو ضبط تحریر میں لا کر مذکورہ کو پڑھ کر سنایا گیا جس نے بیان بالا خود کو درست تسلیم کرتے ہوئے اپنے دستخط اور دو نشان یا نیل اگر تھانہ ثابت کر دیا جس کی میں تصدیق کرتا ہوں بیان بالا حالات واقعات سے سرمدت صورت جرم 302/427/34 تپ پائی جاتی ہے لہذا بیان ذراغرض اندر راج مقدمہ بدست سلیم اکبر C/919 تھانہ قبولہ شریف بمجھوائی جاری ہے بعد اندر راج مقدمہ نقل شل پولیس میرے عقب مجھوائی جاوے اور سیکش پولیس ہائے افسران ہزار سال کی جاوے میں روانہ موقع ہوں KB/26 بوقت 2/10 بجے دن شوکت علی SI/HIU/INV تھانہ قبولہ شریف مورخہ 11/10/19۔ از تھانہ حسب آدہ تحریر استیاض جس پر مقدمہ درج کر کے نقل شل پولیس معز اصل تحریر بمبر لا تھیش بدست ارندہ تحریر عقب SI/HIU صاحب اسال ہے نیز سیکش پولیس بذریعہ خاص افسران ہزار سال ہے۔

4. After registration of the crime report, the investigating officer conducted the investigation and recorded statements of the

prosecution witnesses under Section 161 Cr.P.C. On completion of the investigation, a report under Section 173 Cr.P.C. was prepared and submitted before the trial court in due course. During the trial proceedings, the prosecution produced as many as thirteen (13) prosecution witnesses. After the completion of the evidence, the statements of the appellant and his co-accused under Section 342 Cr.P.C. were recorded by the trial court, wherein they professed their innocence and refuted all the allegations leveled against them in this case. Upon the completion of the trial, the trial court while acquitting the co-accused, convicted and sentenced the appellant as mentioned and detailed above.

5. We have carefully heard the arguments advanced by the learned counsel representing both sides with due attention and consideration. In addition, we have thoroughly examined the entire record available on the file to arrive at a just, and reasoned determination of the matter at hand.

6. The prosecution has relied upon ocular testimony, medical evidence, recovery of the alleged weapon of offense, and the asserted motive to establish its case against the appellant beyond reasonable doubt. To assess the sustainability of the conviction and sentence awarded by the learned trial court, it is imperative to reappraise the entire evidence available on the record to determine whether it meets the requisite standard of proof in criminal jurisprudence.

7. The occurrence in the present case took place on 11.10.2019 at approximately 1:45 p.m., and the FIR was lodged at 2:40 p.m. the same day, suggesting that the matter was reported with extraordinary promptitude. Furthermore, the postmortem examination of the deceased was conducted shortly thereafter, at 3:00 p.m. on the

same day. While the swift initiation of autopsy ostensibly reflects procedural efficiency, it simultaneously raises plausible concerns regarding the actual time of the registration of the FIR. The exceptionally short interval between the occurrence, the lodging of the FIR, and the commencement of the postmortem cast doubt on whether all requisite steps, such as police arrival at the scene, initial inquiry, transportation of the body, and formal paperwork, could have been completed within such a narrow timeframe. This unusual promptness creates a reasonable suspicion that the FIR may not have been lodged at the time recorded in its relevant column and that the timing may have been manipulated to lend the appearance of immediacy and procedural regularity. In **Abdul Hayee**<sup>1</sup>, the Supreme Court observed that completing all police proceedings within thirty minutes was implausible, indicating that the FIR was not actually lodged at the stated time. The incorrect time was deliberately recorded to falsely portray promptness in its registration.

8. The ocular account in the present case was furnished through the testimony of Bashir Ahmed (PW-1)/complainant and Muhammad Yasin (PW-2). Both the eyewitnesses are real brothers *inter se* as well as of the deceased. According to the contents of the crime report and the statements of the eyewitnesses, the deceased was promptly shifted to the Rural Health Centre (RHC) Qabula Sharif for medical treatment; however, he succumbed to his injuries while being transported. Notably, both witnesses remained silent on whether the body was ever brought back to the place of occurrence thereafter. However, in contrast to the above, the Investigating Officer (PW-12) stated in his testimony that upon reaching the scene, the dead body was present at the alleged place of occurrence, where he subsequently

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<sup>1</sup> Abdul Hayee and Abdullah alias Ghazali and another vs. The State and others – 2025 SCMR 281

completed the police proceedings. Moreover, the claim of the eyewitnesses that they evacuated the deceased in an injured condition for medical aid is not supported by any corroborative evidence. Notably, neither of the witnesses handed over any bloodstained clothing to the Investigating Officer, despite it being natural and expected for their clothes to have been soaked with blood, given that the deceased was profusely bleeding and ultimately succumbed to hemorrhagic shock due to excessive blood loss. This omission casts serious doubt on the credibility of their version and raises questions regarding their actual presence at the relevant time.

9. The complainant, while testifying under oath, stated that he and the eyewitnesses accurately pointed out to the police the spot where the appellant fired and where the deceased sustained injuries. Ghulam Mustafa Chughtai, Draftsman (PW-3), confirmed that he prepared the scaled site plan (Exh.PE) on their pointing out, which reflects that the distance between the firing point and the spot where the deceased was hit was 40 feet. On the other hand, Dr. Faheem Altaf (PW-5), who conducted the post-mortem examination of the deceased, specifically observed the presence of blackening and burning around Injury No. 1. Before proceeding further with this judgment, we consider it appropriate to expound upon the principles of medical jurisprudence by which the distance between an assailant and a victim may be determined in the event of a firearm-inflicted wound.

10. In firearm injuries, the presence of burning, scorching, singeing, blackening, and tattooing on the entry wounds serves as critical medico-legal signs of close-range discharge. On the other hand, exit wounds are always free from the aforementioned signs. These effects are caused by the thermal energy and particulate matter released from the muzzle of the firearm upon discharge, and they

serve a vital role in estimating the firing distance and evaluating the factual matrix presented by the prosecution. The following discussion presents a structured medico-legal appraisal of these signs, based upon three foundational books in forensic science and medical jurisprudence, namely, **Modi's Textbook of Medical Jurisprudence and Toxicology, Taylor's Principles and Practice of Medical Jurisprudence, and the Textbook of Forensic Medicine and Toxicology.**<sup>2</sup> These comprehensive and authoritative books provide an elaborative and dependable framework for identifying the characteristic features of close-range firearm effects and for effectively determining the range from which the shot was fired. It shall not be out of place to briefly explain the mechanism of firearms to better understand the nature and effects of close-range injuries. According to Modi, a missile (or bullet) is loaded at the breech into a chamber and is propelled forward by the detonation of an explosive charge. This explosion generates high-temperature gases under great pressure at the closed end of the barrel. When the trigger is pulled, it releases a hammer or firing pin that strikes the percussion cap at the base of the cartridge, igniting the primer and subsequently the propellant charge. As a result, the bullet is expelled through the muzzle with high velocity and energy, accompanied by a flame shot consisting of carbon, unburnt powder particles, and combustion gases formed within the barrel. Thus, if a shot is fired at close range into the body, the flame, smoke, and particles of gunpowder will follow the same track as the bullet within the body. We now proceed to explain the aforementioned effects associated with a close-range gunshot.

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<sup>2</sup> Modi, *A Textbook of Medical Jurisprudence and Toxicology*, 27th Ed., Chapter: 25, Injuries By Mechanical Violence. (Pages:716-728); Taylor, *Principles and Practice of Medical Jurisprudence*, 13th Ed., Chapter: 11, Wounds and their interpretation. (Pages: 244-245); *Textbook of Forensic Medicine & Toxicology*, 2<sup>nd</sup> Ed., By Nageshkumar G Rao, Chapter:20, Firearms and Explosive Injuries (Pages, 279-283)

### **Burning and Flame Effects**

Burning is caused by the intense heat and flame expelled from the muzzle of a firearm when it is discharged at very close range. It can char skin or clothing upon contact. This effect is a strong sign of contact or near-contact discharge and may result in a blast effect in the skin and subcutaneous tissues, skin burns, or discoloration of garments. It is often accompanied by other effects such as singeing and scorching.

### **Scorching/Charring**

Scorching is distinct from burning in that it primarily results in reddening and charring of the skin surface without full-thickness burns. It is caused by the hot gases that escape the muzzle. Scorching provides a measurable forensic clue, often noted within distances of a few inches to one foot from the firearm, depending on weapon type and environmental factors.

### **Singeing**

Singeing refers to the partial burning or curling of hair caused by heat and flame during the firearm discharge. It is generally seen in exposed areas such as the scalp, beard, or forearms and confirms the presence of a flame effect at close range. In forensic analysis, singeing complements burning and scorching to affirm muzzle proximity.

### **Blackening (Smoke Soiling)**

Blackening around a firearm entry wound, also known as soot deposition, smudging, or smoke soiling, is a well-established sign of close-range shooting. It is caused by the deposition of soot and combustion residue around the wound. It is a characteristic of close-range fire, most evident when the shot is fired within two to three feet of the body. Blackening is easily visible on light-colored clothing or skin and can often be wiped away, unlike tattooing. It holds significant forensic

value in differentiating between near-contact and intermediate-range shots.

**Tattooing (Stippling or peppering)**

sTattooing, stippling, or peppering occurs when partially burnt or unburnt grains of gunpowder embed into the skin. Unlike blackening, these marks are not removable by wiping and often cause pinpoint abrasions. It is often seen alongside blackening in close-range firearm injuries. The density and spread of tattooing depend on the distance and type of propellant used. Tattooing can appear up to 60 cm for handguns and further for shotguns, depending on conditions.

Modi, in **A Textbook of Medical Jurisprudence and Toxicology**, 21<sup>st</sup> ed., Chapter XII: ‘Injuries by Mechanical Violence’ (p. 272), provides a table outlining the distances from which a firearm is discharged along with the corresponding effects. It is imperative to cite the table titled ‘Phenomena Observed in Firearm Injuries or Shot Holes on Clothing’, as reproduced below.

| Phenomena                            | Range and Remarks                                                                                                                                            |
|--------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1. Flame/burning/scorching/singeing. | Revolvers/pistols-within about 5-8 cm generally.<br>Rifles-within about 15-20 cm generally. Shotguns-may show evidence of scorching up to 30-10 cm           |
| 2. Smoke/powder marks.               | Rifles generally up to about 30 cm (blackening) and about 100 cm (powder residues).<br>Handguns up to about 60 cm.<br>Shotguns up to about 100 cm generally. |
| 3. Tattooing.                        | Handguns up to about 60 cm.<br>Rifles up to 75 cm generally.<br>Shotguns up to 1-3 m (may be found after careful search at higher range).                    |



In Pankaj v. State of Rajasthan (AIR 2016 SC 4150), the Supreme Court of India relied upon the above table while deciding a case involving charges of murder.

11. Considering the above discussion, the presence of blackening and burning on the injury of the deceased, despite the admitted firing distance of 40 feet, renders the prosecution case unreliable. The medical evidence in this case does not square with the prosecution theory of the case, thereby casting serious doubt on the credibility of the entire case. Such a glaring and irreconcilable contradiction between the ocular account and the medical evidence inflicts a serious blow to the credibility of the prosecution's case. It casts serious doubt on the credibility of the alleged ocular account provided by the eyewitnesses, as well as on their presence at the scene of the occurrence at the relevant time. In the cases of Haleem<sup>3</sup> and Amin Ali<sup>4</sup>, the Supreme Court of Pakistan acquitted the accused on the ground that the presence of blackening around the entry wounds was inconsistent with the distances shown in the scaled site plans, being more than 22 feet and 8 feet respectively. In that regard, reliance can also be placed on the illuminating judgment of the Supreme Court of Pakistan passed in Riasat Ali and another versus The State and another (2024 SCMR 1224) wherein it was held as under: -

*The prosecution witnesses have failed to furnish any explanation as to if the deceased Asadullah Khan was fired upon by a rifle of 222 bore from a distance of 5.5 feet, how his entrance wound was surrounded by blackened and burnt area.*

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<sup>3</sup> Haleem and others vs. The State – 2017 SCMR 709 & Amin Ali and another vs. THE STATE – 2011 SCMR 323

It is a well-established principle of criminal jurisprudence that when two strands of evidence, ocular and medical, are in material conflict and cannot be harmonized, the irreconcilable inconsistency must be resolved in the favour of the accused. In such cases, the benefit of the doubt must be extended to the accused. The medical evidence in this case stands in direct conflict with the ocular account, revealing the glaring contradiction that fatally compromises the credibility of the entire case, causing the edifice of the prosecution to collapse.

12. It has been further observed from the post-mortem and inquest reports, which show that the body was brought to the hospital by the police and identified by two individuals namely Muhammad Aslam and Muhammad Aswar, who were not the alleged eyewitnesses. The eyewitnesses did not even identify the body further weakens their credibility. In the absence of any tangible proof of their presence at the crime scene, their testimony cannot be relied upon. The material contradictions in their statements, along with their failure to accompany the deceased or be listed as identifiers in official reports, strongly indicate that they were not present at the time of the occurrence. Reliance can be placed on the latest verdict of the Supreme Court of Pakistan rendered in Iftikhar Hussain alias Kharoo vs. The State ( **2024 SCMR 1449**).

13. The next piece of evidence relied upon by the prosecution is the recovery of a .7-MM rifle (P-6) on the pointing out of the appellant, which, according to the forensic report (Exh. PQ), matched the crime empties recovered from the place of occurrence at the time of spot inspection. The inquest report prepared at the alleged place of occurrence does not indicate that any crime empties were recovered or taken into possession by the Investigating Officer. This lapse casts serious doubt on the authenticity of the crime empties allegedly recovered from the scene and later forensically matched

with the .7mm rifle recovered on the disclosure of the appellant. The inquest report, as required under Section 174 Cr.P.C. and Rule 25.35(1) of the Police Rules, must incorporate all material particulars of the investigation conducted up to the time of its preparation as it is prepared in duplicate when the initial investigation has been completed. The subsequent prompt transmission of the report to the medical officer for endorsement signifies the intent to ensure transparency and to forestall any later manipulation or fabrication by the investigating agency. This due process protection is vital to maintaining the credibility and veracity of the investigation from its very inception, as it helps to rule out the possibility of tampering with or fabricating the police record, including the practice of padding the investigation with false or exaggerated details. Reliance may aptly be placed on the illuminating judgment of the Supreme Court in Khalid Javed and another v. The State (2003 SCMR 1419). In view of the above, when the inquest report prepared at the place of occurrence does not record the recovery of crime empties, the positive forensic report carries little probative value for the prosecution. Apart from that, the evidence of recovery, being merely corroborative in nature, could not be safely relied upon in isolation. Such evidence acquires relevance only when the substantive evidence, namely, the ocular account, commands confidence. In the present case, where the ocular testimony itself is doubtful, the recovery loses its probative force and fails to lend any material support to the prosecution's case.<sup>5</sup>

14. As regards the motive, the contents of the crime report reveal that the accused persons intended to unlawfully take possession of the land owned by the complainant party. However, no specific details of the land, including the Khewat number, Khasra

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<sup>5</sup> Muhammad Hassan and another vs. The State and others – 2024 SCMR 1427, Asmat Ullah Khan and others vs. The State and others – PLD 2024 SC 1119, Nasir Javaid and another v. The State 2016 SCMR 1144; Muhammad Nawaz and others v. The State and others 2016 SCMR 267 and Hayatullah v. The State 2018 SCMR 2092

number, or its location, over which the appellants allegedly intended to take unlawful possession, were brought on record either during the investigation or at the trial stage. No documentary evidence was produced on the record to substantiate the alleged motive behind the occurrence. In the absence of any tangible proof, such as land ownership documents or other supporting material, the alleged motive remains uncorroborated and unsubstantiated. Even otherwise, a motive is but a circumstantial factor that may lead to the commission of an offense, however, where the ocular account has been discredited, a conviction cannot rest solely on the alleged motive.

15. The foregoing discussion undoubtedly reflects that the prosecution has miserably failed to prove its case against the appellant beyond the shadow of reasonable doubt, thereby giving rise to serious doubts which, under the settled principles of criminal jurisprudence, must be resolved in favour of the accused. The moment a reasonable doubt arises in the prosecution's case, its benefit must go to the accused, not as a matter of grace, but as a legal right rooted in the fundamental principle that no one can be convicted unless proven guilty beyond a reasonable doubt. It is better for ten guilty persons to be acquitted than for one innocent person to be wrongfully convicted.<sup>6</sup>

16. In consequence of the aforementioned discussion, **Crl. Appeal No.22010/2022** filed by the appellant is **allowed**. Resultantly, conviction and sentence passed by the virtue of impugned judgment

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<sup>6</sup> Tariq Pervez v. The State (1995 SCMR 1345), Ghulam Qadir and 2 others v. The State (2008 SCMR 1221), Muhammad Akram v. The State (2009 SCMR 230), Muhammad Zaman v. The State (2014 SCMR 749), Khial Muhammad vs. The STATE – 2024 SCMR 1490 & Najaf Ali Shah vs. The State – 2021 SCMR 736.

are **set aside** and the appellant is **acquitted** of the charge. He is directed to be released forthwith if not required in any other case.

17. **Murder Reference No.79/2022** forwarded by the trial court in terms of Section 374 Cr.P.C. for confirmation of the death sentence awarded to the convict fails, which is answered in the **negative**. The Death sentence is **not confirmed**.

18. As far as **Crl. Appeal No.22009/2022** filed by the complainant against the acquittal of Muhammad Saeed convict/respondent No.1 is concerned, for the afore-stated reasons, as we have already disbelieved the prosecution story, the same is without any legal substance, which is accordingly **dismissed**.

**(FAROOQ HAIDER)**  
**JUDGE**

**(ALI ZIA BAJWA)**  
**JUDGE**

**Approved for Reporting.**

**(FAROOQ HAIDER)**  
**JUDGE**

**(ALI ZIA BAJWA)**  
**JUDGE**

The judgment was pronounced on  
15.05.2025 and after completion, it was  
signed on **30.05.2025**.

*Riaz*